



TEXAS SOUTHERN UNIVERSITY  
THURGOOD MARSHALL SCHOOL *of* LAW

# **PROPERTY**

LAW 506/SEC. 4

FALL 2026

**PROFESSOR EMEKA DURUIGBO**

**Course Schedule: Monday, Wednesday and Friday at 9.00 am to 9.50 pm**

**LSB Room 208**

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## **THE PROFESSOR**

**NAME:** Emeka Duruigbo

**TELEPHONE:** 713-313-1135

**EMAIL:** [emeka.duruigbo@tmslaw.tsu.edu](mailto:emeka.duruigbo@tmslaw.tsu.edu)

**LOCATION:** Room-221C

**OFFICE HOURS:** Monday, Wednesday and Friday  
1:00 pm to 3:00 pm.

(You may also make an appointment)

### **NOTE FROM THE PROFESSOR:**

Please feel free to walk in whenever I am available in my office.



## SUCCESS TIPS

1. Bring your mind to class.
2. Be in class without fail – if possible.
3. Take accurate and complete notes in class.
4. Read all cases and other material before the assigned dates or soon thereafter.
5. Participate in class discussions.
6. Review past bar exam questions.
7. Be ready to take responsibility for your failure and hope not to blame anyone or anything.

**SUCCESS TIP # 1: “Blessed is the one who reads . . . .”**  
**Rev. 1:3 NIV**

**SUCCESS TIP # 2: “If the ax is dull and its edge unsharpened, more strength is needed, but skill will bring success.”**  
**Eccl. 10:10 NIV**

**SUCCESS TIP # 3: *Qui sentit commodum sentire debet et onus et contra***

## COURSE BOOKS & MATERIAL

The main text for this course is **Property: A Contemporary Approach** (6<sup>th</sup> edition) by John G. Sprankling, Raymond R. Coletta and Rachael E. Salcido (West Academic, 2024) (“Casebook” or “CB”).

There are several other books that you may find useful. I will not assign readings from these books, but over the years students have found some of these materials to be useful. I will be happy to give you a list and you might just take a look at them and see what you think. I may also place some books on reserve from time to time.

## **COURSE DESCRIPTION & OBJECTIVE**

### **DESCRIPTION:**

Property is a universal institution. A property system exists in every human society. Yet different societies have differing views on the role and rules of property. This course focuses on presenting the core concepts and fundamental principles of US property law in a concise and accessible manner. We will study relevant rules governing the acquisition, use and distribution of various forms of property, including real property, tangible personal property, intangible personal property and intellectual property. The course will place in relevant context, the role of the institution of property in shaping the legal history and economic framework of the United States.

This course prepares students for the Real Property component of the NextGen Bar Exam and develops practice-ready skills such as legal analysis, client advising, and written advocacy. Students will complete assignments that require them to apply relevant doctrine to realistic scenarios and produce professional legal documents.

### **OBJECTIVE:**

Students will leave the class equipped with basic knowledge and skills to perform excellently on professional examinations and to render informed advice to clients in this area.

I plan to emphasize the learning objectives for each week. These are the key things I expect students to master, to assure that they have minimal proficiency in the subject.

## **STUDENT LEARNING OUTCOMES**

Students should come out of the class equipped with skills to analyze cases properly, identify intricate legal distinctions, distinguish relevant from irrelevant facts, think concurrently from entrepreneurial and legal standpoints, and express their views or present their positions with clarity.

## GRADING

There will be an interim examination administered at the middle of the semester. There will be a final examination at the end of the semester, prior to the comprehensive examination. There will be several take-home problems that will be assigned throughout the semester. **Students may work in groups of 5 or fewer members but the assignment shall be written and submitted individually, not by group. All identical submissions that copy any other student's writing will be cancelled, without determining the original writer.** The assignments will be graded in class and each student's best 2 performances will be used in computing a grade in this category. The interim examination will consist of a timed, in class, closed book essay question that is similar to the essays administered on the Bar examination and multiple-choice questions that mirror the uniform comprehensive examination conducted at the law school. The final examination will consist of multiple-choice questions that mirror the uniform comprehensive examination conducted at the law school. In determining your course grade for the Section, the final exam will be weighted by 25%, the midterm by 15% (consisting of 5% for the essay portion and 10% for the multiple-choice portion) and the class assignments by 10%. The uniform comprehensive examination will account for the remaining 50% of the grade.



## ACCOMMODATIONS

If you require special accommodations, please fill out the necessary forms with the Dean's office. Your application and documentation will remain confidential. Your prompt attention will allow the law school to accommodate you, as soon as it has been made aware of your situation.

Please see:

[http://www.tsulaw.edu/student\\_affairs/docs/2011-2012AccommodationsHandbook.pdf](http://www.tsulaw.edu/student_affairs/docs/2011-2012AccommodationsHandbook.pdf)

## PARTICIPATION, ATTENDANCE & PROFESSIONALISM

### PARTICIPATION

Class participation is a factor in determining the final grade. Students are expected to read the assigned readings prior to class and to be prepared to discuss the material in class.

Prior to each class session, every student is required to submit a one-page case brief of one case (of his or her own choice) from the assigned reading for the day via email to **propertycasebriefs@gmail.com**. During class, students will be called on at random to answer questions about the reading. Students will be expected to answer the questions in a manner that indicates adequate preparation. **Failure to submit case briefs, answer questions during class or any other indication of a lack of preparation for class will attract negative points.** Briefs are not required if no case is included in the reading assignment for the day.

Strong participation and performance in class may help your grade in marginal cases, including an adjustment up one grade increment.

### ATTENDANCE

Students are required to meet the Law School's strict attendance rules. I will circulate an attendance list at each class session. It is expected that all students attend all classes. Students who miss class sessions without reasonable justification should expect that their grade may be adversely affected in a significant way.

### PROFESSIONALISM

Our teaching approach is simple. It is based on Albert Einstein's dictum that every complex concept can be simplified and made easily digestible for the consumer or recipient. We deploy everyday examples to demystify and simplify esoteric terms and professional jargon.

## ACADEMIC CALENDAR

### FALL 2026 ACADEMIC CALENDAR

#### FALL SEMESTER 2026

|                                      |                  |                         |
|--------------------------------------|------------------|-------------------------|
| First-Year Orientation               | Monday-Friday    | August 10-14, 2026      |
| First Day of Class                   | Monday           | August 17, 2026         |
| Last Day to ADD/DROP                 | Wednesday        | August 19, 2026         |
| Census I Date                        | Tuesday          | September 1, 2026       |
| Non-Attendance (NAT) Reporting       | Tuesday          | September 1, 2026       |
| Labor Day Holiday (NO CLASSES)       | Monday           | September 7, 2026       |
| Purge for Non-full Payment           | Wednesday        | September 9, 2026       |
| Mid Term Examinations                | Monday–Friday    | October 5-9, 2026       |
| Last Day to Drop a Class or Withdraw | Friday           | November 6, 2026        |
| Last Day of Classes                  | Tuesday          | November 24, 2026       |
| First Year Professors' Grades Due    | Tuesday          | November 24, 2026       |
| Thanksgiving Holiday                 | Wed-Friday       | November 25-27, 2026    |
| Reading Period                       | Wed-Sunday       | November 25-29, 2026    |
| Final Examinations                   | Monday –Thursday | Nov. 30 – Dec. 10, 2026 |
| University Commencement Ceremony     | Friday           | December 11, 2026       |

*\*Other than IL Uniform examination grades, all letter grades are due on Thursday January 7, 2027*

**Please note that the calendar events and /or dates are subject to change.**

## **POLICIES & PROCEDURES**

The expectation is that students will approach their studies with diligence. The professor has a responsibility to facilitate the study enterprise through meaningful instruction.

The class syllabus is only tentative. *Readings listed in the syllabus are subject to change during the semester.* I will distribute any revised syllabi during the semester.

There will be several practice questions and hypotheticals to be handed in over the course of the semester. You may prepare answers to the practice problems and receive feedback on those assignments.

**READING**

| <b>Read Pages</b> | <b>Before This Date</b> | <b>Anticipated Class Coverage</b>            |
|-------------------|-------------------------|----------------------------------------------|
| <b>0-0</b>        | <b>8.17</b>             | <b>Welcome; Introduction to Property Law</b> |
| 1-24              |                         | Theories of Property                         |
| 24-46             | 8.19                    | What is Property?                            |
|                   |                         | Right to Transfer                            |
|                   |                         | Discovery and Conquest                       |
| 46-63             | 8.21                    | Right to Exclude                             |
|                   |                         | Trespass                                     |
| 63-76             | 8.24                    | Right to Use                                 |
| 741-756           |                         | Nuisance                                     |
| 63-76             | 8.26                    | Nuisance                                     |
| 741-756           |                         |                                              |
| 76-88             | 8.28                    | Right to Destroy                             |
| <b>0-0</b>        | <b>8.31</b>             | <b>Nuisance Hypotheticals</b>                |
| 89-107            | 9.2                     | <b>Ownership of Real Property</b>            |
|                   |                         | Adverse Possession                           |
| 107-126           | 9.4                     | Adverse Possession                           |
| <b>0-0</b>        | <b>9.7</b>              | <b>LABOR DAY</b>                             |
| 127-141           | 9.9                     | Airspace Rights                              |
|                   |                         | Subsurface Rights                            |
| 295-305           | 9.11                    | <b>Estates and Future Interests</b>          |
|                   |                         | Fee Simple Absolute                          |
| 317-319           |                         | Fee Tail                                     |
| <b>0-0</b>        | 9.14                    | <b>Adverse Possession Hypotheticals</b>      |
| 305-316           | 9.16                    | Life Estate                                  |

|         |
|---------|
| READING |
|---------|

|            |                                                       |                                                                                                  |
|------------|-------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| 305-316    | 9.18                                                  | Life Estate 2                                                                                    |
| <b>0-0</b> | <b>9.21</b>                                           | <b>Present Estates Hypotheticals</b>                                                             |
| 319-321    | 9.23                                                  | Fee Simple Defeasible<br>Fee Simple Determinable<br>Fee Simple Subject to a Condition Subsequent |
| 321-333    | 9.25                                                  | Fee Simple Subject to an Executory Limitation<br>Other Issues in Fee Simple Defeasible           |
| <b>0-0</b> | <b>9.28</b>                                           | <b>Fee Simple Defeasible Hypotheticals</b>                                                       |
| <b>0-0</b> | <b>9.30</b>                                           | <b>MIDTERM REVIEW</b>                                                                            |
| <b>0-0</b> | <b>10.2</b>                                           | <b>MIDTERM REVIEW 2</b>                                                                          |
| <b>0-0</b> | <b>10.8</b><br><b>9.00-11.00 AM</b><br><b>LSB 203</b> | <b>MIDTERM EXAMINATION</b>                                                                       |
| 333-337    | 10.12                                                 | Modern Future Interests<br>Future Interests Retained by the Transferor                           |
| 337-341    | 10.14                                                 | Future Interests Created in a Transferee<br>Remainders                                           |
| 337-341    | 10.16                                                 | Remainders                                                                                       |
| 342-344    | 10.19                                                 | Executory Interests                                                                              |
| 350-361    | 10.21                                                 | Rule Against Perpetuities                                                                        |
| 363-369    | 10.23                                                 | <b>Concurrent Ownership and Marital Property</b>                                                 |

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|---------|
| READING |
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|            |              |                                                    |
|------------|--------------|----------------------------------------------------|
|            |              | Concurrent Ownership                               |
| <b>0-0</b> | <b>10.26</b> | <b>Future Interests Hypotheticals</b>              |
| 369-382    | 10.28        | Severance<br>Partition                             |
| 382-386    | 10.30        | Cotenant Rights and Duties                         |
| 387-404    | 11.2         | Marital Property<br>Defining Marital Property      |
| 404-417    | 11.4         | Unmarried Couples<br>Same-Sex Marriage             |
| 142-151    | 11.6         | Water Law                                          |
| <b>0-0</b> | <b>11.9</b>  | <b>Concurrent Ownership Hypotheticals</b>          |
| 153-165    | 11.11        | <b>Owning Personal Property</b><br>Rule of Capture |
| 165-184    | 11.13        | Finders                                            |
| 185-197    | 11.16        | Adverse Possession of Chattels                     |
| 197-215    | 11.18        | Gifts                                              |
| <b>0-0</b> | <b>11.20</b> | <b>FINAL EXAM REVIEW</b>                           |
| <b>0-0</b> | <b>11.23</b> | <b>FINAL EXAMINATION</b>                           |
| <b>0-0</b> | <b>TBA</b>   | <b>COMPREHENSIVE EXAMINATION</b>                   |



# THURGOOD MARSHALL SCHOOL OF LAW

## COVID-19 INFORMATION SHEET

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### HEALTH AND SAFETY ON CAMPUS

1. The University does not require COVID-19 vaccination as a condition for attending school. As a protective measure, students are encouraged to get vaccinated. The St. Luke's vaccination clinic, located on campus in the Nabrit Science Building, is open and accessible to the entire University community, Monday-Friday, 9 a.m. – 7 p.m. There is no cost for the vaccination.
2. Students are expected to continuously self-screen for the symptoms of COVID-19. If you have symptoms and are not fully vaccinated, you should call the Student Health Center at (713) 313- 7173. Please remember to exercise caution and be courteous of your fellow students.
3. Students who experience a medical emergency on campus should call (713) 313-7000. If off campus, call 911. Please inform the dispatch operator if you are experiencing shortness of breath, difficulty breathing, coughing, or have a fever.
4. Students who are unable to attend classes for health reasons, including those relating to COVID-19, should immediately contact the Associate Dean of Student Services, Amy Ratra ([miamy.ratra@tsu.edu](mailto:miamy.ratra@tsu.edu) ), for further guidance.
5. Students who contract the COVID-19 virus must report the information to the Associate Dean of Student Services, Amy Ratra, and the Student Accessibility Services Office (SASO), by phone at 713-313-4210 or by email at [disabilityservices@tsu.edu](mailto:disabilityservices@tsu.edu).
6. Students who contract the COVID-19 virus will be required to quarantine under the advice of Student Accessibility Services Office (SASO). Such students are required to submit Release of Care documentation from a licensed health care professional to SASO and notify the Associate Dean of Student Services, Amy Ratra, before they return to the law school.
7. While on campus and in classrooms, students are encouraged to conduct themselves in a manner conducive to the health and safety of the entire TSU community.
  - a. Students should practice hand hygiene, cough etiquette, and general cleanliness.



## READING

- b. Face coverings (over the nose and mouth) are not required as per the guidelines from the State of Texas. However, students are strongly encouraged to wear face coverings (over the nose and mouth) while in the law school building.
  - a. Students should wash or disinfect their hands before each class and after physical interaction with other persons in the classroom.
  - b. Students should maintain classroom cleanliness. Students should create a clean classroom environment by putting away unnecessary personal items and cleaning their seating area intermittently.
  - c. Students who do not conduct themselves on campus in a manner conducive to the health and safety of those with whom they come in contact may be subject to discipline up to expulsion from law school.
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## ATTENDANCE POLICY

- 8. Law school classes will be mostly in-person this Fall. The law school attendance policy will be strictly enforced.
  - 9. Students who contract the COVID-19 virus will be barred from attending in-person classes until submitting Release of Care documentation from a licensed health care professional to Student Accessibility Services Office (SASO). Such students will be required to study and keep up with the prescribed readings.
  - 10. Students that are excused from in-person class attendance because they contracted the COVID-19 virus should designate a student in each of their classes to make audio recordings of the lectures. Professors are required to allow such recordings to be made. Furthermore, professors are required to meet with such students to answer questions about the materials covered during their COVID-19-related absence.
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## UNIVERSITY RESOURCES

### 11. COVID-19 TESTING

Location: H&PE 109

Hours of Operation: No appointments are necessary. Tuesday – Thursday 8 a.m. – 11:30 p.m. Results will be available within 24 hours if the test is taken by 11:30 a.m.

- 12. The St. Luke's vaccination clinic is open and accessible to all University

## READING

personnel and community, Monday – Friday, 9 am – 7 pm in the Nabrit Science Building.

### 13. STUDENT HEALTH SERVICES

- a. Student Health Services is open 8:00 a.m. – 5:00 p.m. Monday – Friday by appointment only.
- b. A nurse is available at (713) 313-7173, Monday – Friday, from 8:00 a.m. – 5:00 p.m. to schedule appointments.
- c. Appointments will be scheduled virtually and in-person, as needed.
- d. If you are currently enrolled and need a copy of your immunization record go to <https://tsu.medicatconnect.com>.
- e. If you are off campus but in the local area and need assistance contact the Harris County Health Department COVID-19 hotline: [www.ReadyHarris.org](http://www.ReadyHarris.org). If you don't have the internet, call (832) 927-7575 or Houston Health Department COVID-19 Call Center: (832) -393-4220.

### 14. UNIVERSITY COUNSELING CENTER

- a. The University Counseling Center (UCC) is providing convenient Telemental Health Services to all students.
- b. Students may call 713-313-7800 to request an appointment. If someone does not answer, please leave your T-Number, name, and a contact number. Students may also complete this form to request an appointment, and someone will contact them during business hours:  
[https://forms.office.com/Pages/ResponsePage.aspx?id=ViJL72KUK0Su4urH7Z-1ZFNI2YNoWsVPstLk4r8W\\_X1UOUk2SUxMRVoyVEdQTVkzV09YRVBLNU5OTy4u](https://forms.office.com/Pages/ResponsePage.aspx?id=ViJL72KUK0Su4urH7Z-1ZFNI2YNoWsVPstLk4r8W_X1UOUk2SUxMRVoyVEdQTVkzV09YRVBLNU5OTy4u).
- c. Students may receive a call from a blocked or private number, please answer, as it may be your counselor trying to contact you.
- d. If a student experiences a crisis outside of regular business hours, the student can call 833-848-1765.
- e. Other resources for support outside of the UCC include:
  - i. Crisis text line – Text Steve to 741-741.
  - ii. National Suicide Hotline - 800-273-TALK (8255).

## TITLE IX INFORMATION

Texas Southern University is committed to fostering a safe learning environment. As professor, one of my responsibilities is to help create a safe learning environment in class. Texas Southern University and Federal Regulations (Title IX) policy prohibit discrimination based on sex and this includes sexual harassment, sexual violence and misconduct, dating violence, domestic violence, and stalking. Texas Southern University understands that these incidents can undermine a student's academic success, so Texas Southern University encourages students who have experienced sexual conduct prohibited by university policy to report these incidents when they happen to the University's Title IX Coordinator or University Confidential Resource so that the student can get the help they may need.

It is my goal that you feel able to share information related to your life experiences in classroom discussions, in your written work, and in one-to-one meetings. I will seek to keep information you share private to the greatest extent possible. However, I also have a mandatory responsibility to notify the University's Title IX Coordinator when I become aware of incidents of prohibited conduct that violate the university's Title IX policy.

Students may speak confidentially to the University Counseling Center. Please feel free to visit their website [www.tsu.edu/ucc](http://www.tsu.edu/ucc) for more information about their services. Also, students may speak with the University's Title IX Coordinator by calling 713.313.1371 or emailing [titleix@tsu.edu](mailto:titleix@tsu.edu).

## **Mandatory SASO and Title IX Syllabus Statements**

### **Student Accessibility Services Office (SASO) Syllabus Statement**

#### **Classroom Accommodations for Students with Disabilities**

In accordance with the Americans with Disabilities Act (ADA), Texas Southern University (TSU) is committed to providing equitable access to learning opportunities to students with documented disabilities (e.g., mental health, attentional, learning, chronic health, sensory, or physical). For each class/term/semester where a student needs academic adjustments/ accommodations, the qualified student must work with SASO. Contact with the SASO should be made as soon as possible to ensure academic needs are met in a reasonable time. Only the SASO can grant, modify, or withdraw academic adjustments/accommodations.

If you have not yet established services through SASO but have a temporary health condition or permanent disability that requires accommodations, you are welcome to contact SASO by using the information listed on the following webpage: <https://www.tsu.edu/students-services/departments/disability-services/register-with-the-ods>.

The SASO office offers resources and coordinates reasonable accommodations for students with disabilities and/or temporary health conditions qualifying for accommodations/academic adjustments. Reasonable accommodations are established through an interactive process between you, your faculty, and SASO. Only those academic adjustments/reasonable accommodations granted by the SASO are recognized by TSU. TSU's policy and practice is to create an inclusive and accessible learning environment consistent with federal and state law.

## **Title IX/Pregnant and Parenting Students Syllabus Statement**

### **Addressing Incidents of Title IX Sexual Harassment**

In accordance with Title IX of the Education Amendments of 1972, Texas Southern University (TSU) prohibits unlawful sexual harassment against any participant in its education programs or activities. Title IX requires schools to take steps to prevent and remedy sexual harassment, hostile environment, including sexual violence, gender-based harassment, dating/domestic violence, and stalking. This prohibition against sexual harassment - including sexual violence - applies to TSU students, employees, and visitors to campus.

TSU's policy is to provide an educational, employment, and business environment free of sexual violence, unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct or communications constituting sexual harassment as prohibited by state and federal law. Incidents of Sexual Misconduct should be reported to the college Title IX Coordinator, as outlined in policy. Reports of alleged Title IX violations may be made by visiting: <https://app.smartsheet.com/b/form/4e1d5ba471ee442082f477910cb1b4c4>. Reports may also be made directly through email to [TitleIX@TSU.edu](mailto:TitleIX@TSU.edu).

Pregnant and parenting students should expect to obtain reasonable academic adjustments/ accommodations based on their pregnant and parenting status to maintain access to the educational environment. These students should work with the Title IX Coordinator for appropriate academic adjustments/accommodations. TSU cannot grant retroactive adjustments, so reaching out early with requests is important. Discrimination against pregnant and parenting students is also prohibited under Title IX. For more pregnant and parenting information, please visit the Title IX webpage found at: <https://www.tsu.edu/about/administration/office-of-compliance/title-ix/>